

2. **M-CV-0097214 Jenson, Andrew v. Bal, Nora**

The demurrer to the complaint is dropped from calendar as no moving papers were filed with the court and default and default judgment for possession were entered against the defendant on May 26, 2026.

3. **S-CV-0044551 Duncan, Royce D v. Mason, Thomas A**

This tentative ruling is issued by the **Honorable Todd D. Irby**.

Final Accounting

This matter is on for continued hearing on a final accounting after sale of real property by partition. By prior tentative ruling, the Court continued the hearing and noted a deficiency and some areas of the accounting that required additional explanation. Since then, plaintiff has filed and served notice of continued hearing, a supplemental final account, a corrected final account, and a declaration of counsel. All of the Court's previously noted concerns have now been addressed.

The newly filed documents raise a new issue for the Court, however, as the referee intends to refund to defendants any part of the withheld \$10,000 that is not used. However, no explanation is provided as to how such a refund would be implemented, especially in light of the fact that defendants' current service address appears to be the subject premises. Explanation is needed.

The Court, on its own motion, continues the hearing once more to be heard on **July 14, 2026 at 8:30 a.m. in Department 32**. By June 30, 2026, plaintiffs are directed to file and serve on all parties (1) a notice of continued hearing and (2) supplemental declaration(s) outlining a detailed plan for the refund to defendants of all or part of the withheld \$10,000.

4. **S-CV-0049793 Ratzak, Jessica v. Thinkware Systems USA Inc.**

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action settlement. The motion is unopposed. While the motion addresses several issues raised by the court the last time it considered preliminary approval of the parties' settlement (Law and Motion Minutes, Jan. 13, 2026), the court observes three areas where clarification is needed.

First, class counsel repeats throughout the moving papers and counsel's declaration that to obtain email addresses and mailing addresses for class members, class counsel shall serve subpoenas on known third-party retailers. However, the timeline class counsel proposes for notice to the class (to be provided within 20 days of preliminary approval) does not appear to take into consideration the time necessary to serve subpoenas on third-party retailers and receive those records. Explanation is needed.

Second, plaintiff provides a declaration from the settlement administrator. However, the information provided as to how the settlement administrator provides incomplete information for how an address will be updated when a postcard is returned as undeliverable, as the settlement administrator states only it "will use reasonable efforts to identify a mailing address and mail a copy of the postcard notice to such address." (Schwartz Decl. para. 13.) Explanation as to what these reasonable efforts will be is needed.

Third, the moving papers and the settlement agreement make clear plaintiff requests court authorization for settlement administration costs not to exceed \$100,000. It appears from the Schwartz declaration that this amount includes the costs of maintaining the Settlement Call Center and the Settlement Website. (Schwartz Decl., ¶¶ 19, 20, 21, 23.) However, the language of the settlement agreement appears to indicate the website and call center costs would be separate and apart from the administration costs that are not to exceed \$100,000. Explanation is needed.

In light of these issues, the court on its own motion continues this motion to be heard on **June 30, 2026 at 8:30 a.m. in Department 42**. By June 16, 2026, plaintiff shall file and serve notice of continued hearing and supplemental declaration(s) to address the court's observations noted in this ruling.

5. S-CV-0050615 Temple, Laura v. Action Water Sports of Incline Village

Defendant is advised that the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant Action Water Sports of Incline Village, LLC's Motion for Summary Judgment, or in the alternative, Summary Adjudication

Plaintiff Laura Temple ("Plaintiff") seeks damages for severe injuries sustained when she was struck by a boat propeller while swimming near a rented motorboat on Lake Tahoe on or about August 4, 2020. Plaintiff alleges that defendant Action Water Sports of Incline Village, LLC ("AWS") and related rental defendants were negligent in renting and equipping the vessel, failing to provide adequate boating instruction, safety training, warnings, and equipment, and violating Nevada law. Plaintiff further contends that defendants Michael Goodwin ("Goodwin"), Zakaria Stour ("Stour"), Shawn Willette ("Willette"), and Brenda Poot ("Poot") negligently operated the vessel by placing it in reverse while she was in the water, causing the accident. AWS denies liability and on or about May 30, 2023 filed a cross complaint against Goodwin, Stour, Willette, and Poot